

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X Index No.:
KASIEM SMITH,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER
RYAN T. COFFARO, POLICE OFFICER KAZ
R. DAUGHTRY and POLICE OFFICER
"JOHN DOE",
(fictitious name, real name unknown)Defendants.
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Plaintiff, as and for his Complaint, by and through his attorney, the LAW
OFFICES OF SEAN H. ROONEY, complaining of the defendants, respectfully sets forth
and alleges upon information and belief as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. That at all the times herein alleged, and upon information and belief,
plaintiffs was and still is a resident of the County of Kings, City and State of New York.

2. That the defendant THE CITY OF NEW YORK (hereinafter "CITY") was
and still is a Municipal Corporation duly organized and existing under and by virtue of
the laws of the State of New York.

3. Upon information and belief, that at all times hereinafter mentioned,
Defendant POLICE OFFICER RYAN T. COFFARO (hereinafter "P.O. COFFARO") was
and still is a resident of the State of New York.

4. Upon information and belief, that at all times hereinafter mentioned,
Defendant POLICE OFFICER KAZ R. DAUGHTRY (hereinafter "P.O. DAUGHTRY")
was and still is a resident of the State of New York.

5. Upon information and belief, that at all times hereinafter mentioned, Defendant POLICE OFFICER "JOHN DOE" (hereinafter "OFFICER") was and still is a resident of the State of New York.

6. That at all times hereinafter mentioned defendant P.O. COFFANO, was and still is an officer in the Police Department of the CITY OF NEW YORK. Suit is being brought against him individually and in his official capacity.

7. That at all times hereinafter mentioned defendant P.O. DAUGHTRY, was and still is an officer in the Police Department of the CITY OF NEW YORK. Suit is being brought against him individually and in his official capacity.

8. That at all times hereinafter mentioned defendant OFFICER, was and still is an officer in the Police Department of the CITY OF NEW YORK. Suit is being brought against him individually and in his official capacity.

9. That at the time of the aforesaid occurrence the defendants were acting as an employee and agent of the CITY OF NEW YORK within the scope of his authority, and under color of law.

10. At and during all times hereinafter mentioned, the defendant CITY OF NEW YORK was the owner of a certain motor vehicle registered in the State of New York for the year 2022.

11. At and during all times hereinafter mentioned, the defendant CITY OF NEW YORK leased a certain motor vehicle registered in the State of New York for the year 2022.

12. At and during all times hereinafter mentioned, defendant CITY OF NEW YORK maintained and managed a certain motor vehicle registered in the State of New York for the year 2022.

13. At and during all times hereinafter mentioned, defendant CITY OF NEW YORK operated and controlled the aforesaid motor vehicle.

14. At and during all times hereinafter mentioned, defendant CITY OF NEW YORK operated and controlled the aforesaid motor vehicle.

15. At and during all times hereinafter mentioned, defendant CITY OF NEW YORK operated and controlled the aforesaid motor vehicle in furtherance of his employment.

16. At and during all times hereinafter mentioned, defendant CITY OF NEW YORK operated and controlled the aforesaid motor vehicle with permission and consent of the owner.

17. That at all times hereinafter mentioned, Erskine Street in the vicinity of Vandalia Avenue in the County of Kings, City and State of New York, was and is a public highway and/or thoroughfare.

18. That on July 24, 2022, at the aforesaid location, the aforesaid motor vehicle struck the motor bike being operated by the plaintiff, causing the plaintiff to be thrown off his vehicle and become injured.

19. That the aforesaid accident and injuries resulting therefrom were due solely and wholly as a result of the careless and negligent manner in which the defendants owned, operated, maintained, controlled and managed their motor vehicle without this plaintiff in any way contributing thereto.

20. That the defendants are guilty of negligence on the premises that they: operated the motor vehicle with utter disregard for the safety of other persons and motorists using public street and highways; in the negligent ownership, operation and control of the motor vehicle; in failing to have his attention before him in the instance; in failing to take cognizance of the character of the roadway; in striking plaintiff's motorbike; in failing to apply the brakes of the motor vehicle properly and in time to avoid the occurrence; in failing to properly observe plaintiff's motor vehicle; in failing to use proper precaution in passing and/or changing lanes; in failing to have the motor vehicle under proper control; in allowing the motor vehicle to come into contact with that of plaintiff; in causing and allowing the motor vehicle to be operated at an excessive rate of speed under the circumstances; in failing to give plaintiff's notice or warning of the impending occurrence; in failing to apply the brakes; in failing to sound warning; in failing to avoid the occurrence although defendants had opportunity to do so; and in failing to use due care in the operation of the motor vehicle under the circumstances.

21. That by reason of the foregoing and the negligence of the defendants, the plaintiff was severely injured, bruised, wounded, suffered, still suffers, and will continue to suffer for some time physical pain and bodily injuries and became sore sick lame and disabled and so remained for a considerable length of time.

22. That by reason of the foregoing, the plaintiff, was compelled to and did necessarily require medical aid and attention and did necessarily pay and become liable therefor for medicines, and upon information and belief, the plaintiff will necessarily incur similar expenses.

23. That by reason of the foregoing, the plaintiff, has been unable to attend to his usual occupation in the manner required.

24. That by reason of the wrongful, negligent and unlawful actions of the defendants aforesaid, the plaintiff, sustained serious injuries as defined in Section § 5012(d) of the Insurance Law of the State of New York, and has sustained economic loss greater than basic economic loss as defined in Section § 5012 of the said Insurance Law.

25. That one or more of the exceptions of § 1602 of the Civil Practice Law and Rules do apply to the within action.

26. That as a result of the foregoing, the plaintiff, sustained damages in the sum of which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION

27. Plaintiff repeat, reiterate and re-allege each and every allegation set forth in the allegations "1" through "26" herein inclusive, together with the same force and effect as if set forth more fully at length herein.

28. That on or about July 24, 2022, while Plaintiff was lawfully present at the aforesaid location, the defendants in the scope of their employment, as police officer and in connection with an illegal and false arrest, accosted Plaintiff, physically assaulted the Plaintiff, illegally and forcibly detained him at the aforementioned time and place, unlawfully stopped, searched, assaulted and arrested Plaintiff, unlawfully detained plaintiff in a police vehicle, at the 78th Precinct and other locations without Plaintiff's consent until his release, and otherwise harmed the Plaintiff.

29. That during the aforesaid assault, the Defendant police officers repeatedly and without justification called Plaintiff names, cursed at Plaintiff, threatened Plaintiff and verbally tormented Plaintiff.

30. That in connection with the aforementioned assault, said defendants were accompanied by another male police officer, whose name is unknown to Plaintiff, who joined in the assault, false arrest and unlawful confinement of the Plaintiff.

31. That the aforesaid assault took place in a public in front of other people, many of whom are knew the Plaintiff, much to Plaintiff's dismay and humiliation.

32. That the aforesaid acts were the result of brutal, wanton and malicious conduct on the part of the Defendant police officers, and at no time did Plaintiff provoke or cause any of the aforesaid conduct and in no way was the aforesaid conduct justified or reasonable.

33. That at no time did Plaintiff commit any crime, break any law, or do any wrong.

34. That solely by reason of the foregoing, the Plaintiff sustained serious and severe personal and psychological injuries.

35. That solely by reason of the foregoing, the Plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION

36. The Plaintiffs repeats, reiterates and re-alleges each and every allegation contained in the paragraphs of the Complaint numbered "1" through "35" as if fully set forth herein at length.

37. That at the time and place aforesaid, the Defendant police officers, while acting within the scope of their employment by the Defendant CITY, were negligent and grossly negligent and careless in taking custody the Plaintiff.

38. That such negligence and gross negligence consisted of, among other things, that they failed to properly investigate the situation; failed to ascertain the truth of the situation, which could have been ascertained upon reasonable inquiry; failed to discuss the situation with witnesses that were available; took drastic action on an unsubstantiated charge without any further verification or insufficient verification when the situation was not an emergency situation; misjudged and over judged the amount of force necessary to take into custody the Plaintiff; failed to take proper precautions to prevent unnecessary and severe physical and psychological injury to the Plaintiffs while taking Plaintiff into their custody; failed to exercise the proper care and caution in taking the Plaintiff into custody; failed to adequately supervise its employs pertaining to proper use of force when taking persons into custody; and was otherwise careless and negligent.

39. That the injuries aforesaid were due to the negligence and gross negligence of the Defendants, and the Plaintiff having in no way contributed thereto.

40. That as a result of the aforesaid, Plaintiff suffered severe personal and psychological injuries herein above alleged.

41. That solely by reason of the foregoing, the Plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION

42. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the paragraphs of the Complaint numbered "1" through "41" as if fully set forth herein at length.

43. That on July 24, 2022, the Plaintiff was falsely arrested without a warrant by the Defendant police officers acting on behalf of the Defendant CITY.

44. That at the aforesaid time and place, and in connection with the aforesaid arrest, the Defendant police officers arrested and wrongfully detained the Plaintiff in a public place, on the street and other locations.

45. That the aforesaid arrest was a false arrest, in that it was without probable cause, without warrant and without just cause or justification.

46. That the aforesaid detention constituted an unlawful detention in that it resulted from an illegal and unlawful arrest with the Defendants having no cause, justification or right to detain the Plaintiff in their custody.

47. That said arrest was false, groundless and illegal in that Plaintiff committed no crime, broke no law and did no wrong, and there was no probable cause or just cause to believe he had.

48. That the Plaintiff arrest received wide notoriety in his home community in which the arrest occurred, in front of all his friends and acquaintances and in a loud, rambunctious and notorious manner as to attract the attention of all those around.

49. That solely as a result of this false arrest and false imprisonment, the Plaintiff's health was impaired, plaintiff suffered great mental distress, irreparable damage to his reputation and character, his earning power was permanently impaired, his record was permanently marred with the false and groundless notation that he was

arrested, incurred substantial mental anguish, incurred substantial and permanent psychological disturbance and embarrassment as well as suffered all the injuries as previously alleged herein.

50. That solely by reason of the foregoing, the Plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION

51. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the paragraphs of the Complaint numbered "1" through "50" as if fully set forth herein at length.

52. That on the 24th day of July, 2022, the Defendant police officers in connection with the aforesaid illegal detention and arrest of the Plaintiff, did intentionally, maliciously, and wantonly torment the Plaintiff by threatening him, calling him names, cursing at him, and abusing him, all in front of his friends, neighbors and acquaintances in a public place for no reason.

53. That the aforesaid acts were a result of brutal, outrageous and malicious conduct on the part of the Defendant police officers and at no time did the Plaintiff provoke or cause any of the aforesaid conduct, and in no way was the aforesaid conduct justified or reasonable.

54. That as a result of the aforesaid, the Plaintiff suffered personal injuries as hereto before alleged, in addition to great mental distress, severe mental anguish, extreme humiliation, permanent psychological disturbance, embarrassment, intense fear, suffered great pain and distress and was otherwise injured.

55. That solely by reason of the foregoing, the Plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A SIXTH CAUSE OF ACTION

56. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the paragraphs of the Complaint numbered "1" through "55" as if fully set forth herein at length.

57. That the aforementioned acts are the result of an actual and defacto policy of the CITY as implemented by its officials, police commissioners and police departments.

58. That the aforesaid occurrences constitute a deprivation of Plaintiff's civil right under Federal Law specifically § 42 U.S.C. Section 1981, 1983, 1998 and the FIRST, FOURTH, FIFTH AND FOURTEENTH AMENDMENTS of the United States Constitution.

59. That the Defendants and their agents and employees have been conferred with "Police Officer Status" and as such, were acting under "Color of Law" and "Color of their Authority as Peace Officers" in effecting the assault, battery and imprisonment of Plaintiff.

60. That the aforesaid actions constitute an unlawful arrest, unlawful detention, excessive use of force and physical brutality, all in violation of the FIRST, FOURTH, FIFTH and FOURTEENTH AMENDMENTS of the United States Constitution, as well as 42 U.S.C. Section 1981, 1983 and 1988.

61. That solely as a result of the aforesaid violation of Plaintiff's right under the aforesaid Federal Statutes, the Plaintiff was caused to suffer the injuries that are hereto

before alleged, as well as general damages for the violation and deprivation of his liberty, invasion of privacy, and other deprivation of Civil Rights, as well as attorneys fees as provided by said statutes.

62. That solely by reason of the foregoing, the Plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A SEVENTH CAUSE OF ACTION
MALICIOUS PROSECUTION

63. That Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the paragraphs of the Complaint numbered "1" through "62" as if fully set forth herein at length.

64. That in connection with the false arrest and imprisonment, the defendants initiated a prosecution against the plaintiff, without probable cause to believe that such proceeding could succeed.

65. That defendants initiated such prosecution with malice, and that said prosecution terminated in favor of the plaintiff.

66. That solely by reason of the foregoing, the Plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR AN EIGHTH CAUSE OF ACTION
FOR PUNITIVE DAMAGES

67. That Plaintiffs repeat, reiterate and re-allege each and every allegation contained in the paragraphs of the Complaint numbered "1" through "66" as if fully set forth herein at length.

68. That the aforesaid acts by the Defendants were the result of willful, wanton, outrageous, malicious, illegal, brutal and unconscionable intentions and actions without cause or justification.

69. That as a result of this wanton conduct and gross negligence, Plaintiff is entitled to recover punitive damages.

70. That solely by reason thereof, Plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower Courts.

71. That heretofore, the Plaintiff caused to be served upon the comptroller of the Defendant CITY a Notice of Claim, pursuant to Section 50-e of the General Municipal Law, and more than 30 days have elapsed and the claim was not settled or adjusted. Said notice was served within 90 days of the occurrence complained of, and this action was commenced within one year and 90 days from the date of said occurrence.

AS AND FOR A NINTH CAUSE OF ACTION

72. That Plaintiffs repeat, reiterate and re-allege each and every allegation contained in the paragraphs of the Complaint numbered "1" through "71" as if fully set forth herein at length.

73. That Defendants failed to exercise reasonable care in selecting, hiring, retaining and training Police Officers. At the time defendants hired, retained and trained said police officers, defendants knew or should have reasonable known that said officers would violate the rights of members of the general public and as a direct and proximate result, would cause injuries as alleged herein.

74. As a direct and proximate result of Defendant's negligent selection, hiring, retention and training, plaintiff has suffered and continues to suffer injuries entitling him to damages in an amount which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A TENTH CAUSE OF ACTION
DENIAL OF MEDICAL CARE

75. That Plaintiff repeat, reiterate and re-alleges each and every allegation contained in the paragraphs of the Complaint numbered "1" through "74" as if fully set forth herein at length.

76. That while Plaintiff was in custody of the defendants, plaintiff suffered injuries, which required immediate medical care.

77. That Plaintiff informed defendants of his need for medical care, requested that defendants provide him medical care, and his request was denied.

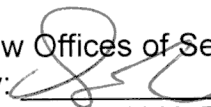
78. That Defendants failed to exercise reasonable care in denying medical care to the plaintiff, including but not limited, to failing to ascertain plaintiff's medical condition and/or medical needs, and was otherwise careless, negligent and/or reckless in failing to inquire into plaintiff's physical condition and to provide timely and adequate medical care.

79. As a direct and proximate result of Defendant's negligent selection, hiring, retention and training, plaintiff has suffered and continues to suffer injuries entitling him to damages in an amount which exceeds the jurisdictional limits of all lower Courts.

WHEREFORE, the Plaintiff demands Judgment against the Defendants on the First, Second, Third, Fourth, Fifth, Sixth, Seventh, Eighth, Ninth and Tenth Causes of Action each in an amount which is in excess of the jurisdictional limit of all lower courts

that would otherwise have jurisdiction in this matter, together with the costs and disbursements of this action.

Dated: Brooklyn, New York
April 24, 2023

Law Offices of Sean H. Rooney
By: 
SEAN H. ROONEY, ESQ.
Attorneys for Plaintiffs

VERIFICATION

STATE OF NEW YORK)
COUNTY OF Kings) s.s.:

I, the undersigned, being duly sworn, depose and say: I am the Plaintiff

in the action; I have read the foregoing *Summary and Complaint*

And know the contents thereof; the same is true to my own knowledge, except as to the matters therein state to be alleged on information and belief, and as to those matters I believe it to be true.

Kawiem Smith

Sworn to before me on this 24
day of April, 2023

[Signature]

NOTARY PUBLIC

SEAN H. ROONEY
Notary Public - State of New York
No. 02RO5067378
Qualified in Queens County
Commission Expires 10/15/25

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
RYAN T. COFFARO, POLICE OFFICER KAZ
R. DAUGHTRY and POLICE OFFICER
"JOHN DOE",
(fictitious name, real name unknown)

Defendants.

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SUMMONS AND COMPLAINT

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